

A **political party** is a **voluntary association** or organised group of individuals with shared **political views** or ideologies. They seek to achieve **political power** through **constitutional means** and work to promote the **national interest**.

Types of Party Systems

1. **One-Party System:** Only one ruling party, **no opposition** (e.g., former USSR, **Chinese Communist Party (CCP)**).
2. **Two-Party System:** Two major parties dominate (e.g., USA ((Democratic, Republican), Britain).
3. **Multi-Party System:** Numerous parties leading to **coalition governments** (e.g., India, France, Switzerland, Italy, **German (Multi-Party System with proportional representation)** , **India: Multi-Party System** with strong **regional parties**, **South Africa: Multi-Party System** with ANC dominance post-apartheid).

PARTY SYSTEM IN INDIA

Multi-Party System: India has a **large number of political parties** due to its **continental size**, **diverse society**, and **universal adult franchise**.

Current status: 6 National Parties, 54 State Parties & 2,597 Registered-Unrecognised Parties

Recognition of Parties

- **National and State Parties:** The **Election Commission of India (ECI)** grants recognition based on **poll performances**.
- **Registered-Unrecognised Parties:** Do not meet the criteria for national or state status.

Benefits of Recognition

- Access to electoral rolls.
- Time for political broadcasts on state media.
- Exclusive party symbols.

Party Symbols Allocation

- **National Party:** Has a **symbol** reserved for use across India.
- **State Party:** Exclusive symbol for the state(s) where recognized.
- **Registered-Unrecognized Party:** Chooses from a **list of free symbols**.

Proposers and Star Campaigners

- **Recognized Parties:** Need only **1 proposer** and can have **40 star campaigners**.
- **Registered-Unrecognised Parties:** Can have **20 star campaigners**.
- **Campaign expenses** for star campaigners are **not included** in individual candidate expenditures.

CRITERIA FOR RECOGNITION AS A NATIONAL PARTY

Fulfillment of any one of the following conditions:

- **6% valid votes** in **4 or more states** plus **4 Lok Sabha seats**.
- **State party status** in **4 states**.
- **2% Lok Sabha seats** from **3 states**.
- **Current National Parties:** As India has a multi-party system, there are six national parties in the country - AAP, BSP, BJP, INC, CPI-M, and National People's Party (the first national party from the North-East region).

CRITERIA FOR RECOGNITION AS A STATE PARTY

Fulfillment of any of the following conditions

- **8% votes** in the last Lok Sabha or state assembly elections.
- **1 Lok Sabha seat** for every 25 seats in the state.
- **3% of assembly seats** or **3 seats**, whichever is higher.
- At the last general election to the Legislative Assembly of the State, the candidates set up by the party have secured not less than six percent of the total valid votes polled in the State; and, in addition, the party has returned at least two members to the Legislative Assembly of that State at such general election; or
- At the last general election to the House of the People from that State, the candidates set up by the party have secured not less than six percent of the total valid votes polled in the State; and, in addition, the party has returned at least one member to the House of the People from that State at such general election;

The Communist Party of India (CPI) was the single largest opposition party in the First general Election. CPI won in 16 seats. The Indian National Congress (INC) won a landslide victory, winning 364 of the 489 seats and 45% of the total votes polled. Jawaharlal Nehru became the first democratically elected PM of the country. [UPSC 2018]

Deregistration of Political Parties

- **Section 29A of the Representation of People Act, 1951** governs **registration** of parties with the ECI.
- **Deregistration** can occur if: Obtained registration through **fraud**, **Illegal declaration** by the Central Government & **Violation** of the Indian Constitution.
- **Representation of People Act, 1951 (RPA)**: Regulates **elections**, **by-elections**, **party registration**, and **qualifications/disqualifications**. Manages **election expenditure** and **administrative machinery** for elections. RPA does **not allow deregistration** of parties by the ECI.

ELECTIONS

Elections are a formal process where citizens select their representatives. The Indian Constitution's **Part XV (Articles 324-329)** lays down the provisions for conducting elections and establishes the **Election Commission** for this purpose.

Electoral Constituency: An electoral constituency is a designated geographical area from which voters elect a representative to a legislative body. It is essential for ensuring representative democracy, allowing citizens to choose individuals who will advocate for their interests in various legislative bodies (e.g., parliaments, assemblies).

Types of Constituencies Include parliamentary, assembly, and local government constituencies.

Methods of Election

1. First-Past-the-Post System:

- Used for elections to the **Lok Sabha** and **Vidhan Sabha**.
- Electors vote for one candidate; the candidate with the most votes wins.
- Suitable for a multiparty system, ensuring each party's representation regardless of size.

2. Proportional Representation:

- Votes are distributed proportionally among legislative members.
- Ensures that parties receive seats in accordance with their overall vote share, reflecting a more accurate representation in the legislature.

Key Constitutional Articles on Elections

- **Article 324**: Establishes the **Election Commission** to supervise elections to Parliament, State Legislatures, and the offices of the President and Vice-President.

- **Article 325**: Prohibits exclusion from electoral rolls on the grounds of **religion, race, caste, or sex**.
- **Article 326**: Provides for elections to the **House of the People** and **State Legislative Assemblies** based on **adult suffrage**.
- **Article 327**: Empowers **Parliament** to legislate on matters related to elections, including **electoral rolls** and **delimitation of constituencies**.
- **Article 328**: Empowers **State Legislatures** to legislate on elections, subject to the provisions of the Constitution.
- **Article 329**: Prevents **court interference** in electoral matters, except through **election petitions**.

Other Constitutional Provisions

- **Election Commission of India** handles elections to **Parliament**, **State Legislatures**, the **President**, and **Vice-President**. The **State Election Commission** manages elections to **Panchayats** (Article 243K) and **Municipalities** (Article 243ZA).
- No discrimination based on **religion, race, caste, or sex** is allowed for inclusion in electoral rolls (Article 325).
- All Indian citizens who meet the age requirement have the right to vote, with exceptions for **non-residence**, **unsound mind**, **criminal acts**, or **corrupt practices**.
- **Universal Adult Franchise** (Article 326) ensures voting rights for all eligible adults, promoting equality.
- **Election Disputes**: **Article 323B** allows the creation of tribunals to handle **election disputes**. However, no such tribunal exists yet. The **Chandra Kumar case (1997)** declared the exclusion of **court jurisdiction** in election disputes unconstitutional. If a tribunal is created, the **High Court** will have appellate jurisdiction.

Types of Elections in India

1. Rajya Sabha Elections

- **Method**: Proportional representation by **single transferable vote**.
- **Term**: Members serve **six years**; one-third retire every two years.
- **Dissolution**: Rajya Sabha is **permanent**.

2. Lok Sabha Elections

- **Method**: Direct elections by **adult citizens**; **first-past-the-post** system.
- **Frequency**: Every **five years**.
- **Composition**: **543 seats**; **131 reserved** for Scheduled Castes (84) and Scheduled Tribes (47).

3. State Assembly Elections (Vidhan Sabha)

- **Members**: Called **Members of the Legislative Assembly (MLAs)**.
- **Term**: **Five years**; directly elected.

4. State Legislative Council

- **Members**: Elected **indirectly**.

- **Strength:** Maximum one-third of the State Assembly; minimum of **40 members**.
- **Electoral College composition:** Graduates: **1/12**, Teachers: **1/12**, Local Body Members: **1/3**, MLAs: **1/3**, & Nominations by the Governor: **1/6**

5. Bye-Elections

- **Purpose:** Fill vacancies between regular elections.
- **Conduct:** Must occur within **six months** of vacancy, except in specific cases.
- **Participation:** Allows political parties to test electoral strength.

Components of Election Machinery in India

- **Independent Election Commission**
 - **Constitutional Authority:** Autonomous body independent of government influence.
 - **Chief Election Commissioner (CEC):** Appointed by the President; removal requires the same process as for a Supreme Court judge.
- **Key Electoral Officers**
 - **Chief Electoral Officer (CEO):** Nominated by the Election Commission and supervises elections in a State/Union Territory (Representation of the People Act, 1950).
 - **District Election Officer (DEO):** Manages elections at the district level and reports to the CEO (Representation of the People Act, 1950).
 - **Returning Officer (RO):** Conducts elections in a parliamentary or assembly constituency (Representation of the People Act, 1951).
 - **Electoral Registration Officer (ERO):** Prepares electoral rolls for constituencies.
 - **Presiding Officer:** Oversees polling at stations; appointed by DEO or Returning Officer in Union Territories.
 - **Observers:** Nominated by the Election Commission to monitor elections & includes General, Election Expenditure, and Awareness Observers, with statutory powers established by amendments in 1996.

- **Formal Notification:** Issued by the President (for Lok Sabha) or Governor (for State Assembly), starting the election process.
- **Filing of Nomination Paper:** Must include candidate details and signatures from two registered voters.
- **Oath and Affirmation:** Candidates take an oath before authorised officers.
- **Security Deposit:** Required; forfeited if less than 1/6 of valid votes are received.
- **Examination:** Returning Officer checks nominations for compliance.
- **Withdrawal:** Candidates can withdraw within two days after scrutiny.
- **Campaigning:** Candidates promote themselves to voters; recognized parties can access state-owned media.
- **Model Code of Conduct**
 - ◆ **Guidelines:** Set by ECI to ensure fair conduct by political parties during elections. Not legally enforceable.
 - ◆ **Effect:** Begins upon election announcement and lasts until results are declared; violations can be reported via the C-vigil app.
- **Voting System**
 - ◆ **Electoral Roll:** Official voter list, revised every five years.
 - ◆ **Voting Rights of Prisoners:** Convicted individuals and undertrial prisoners cannot vote; those under preventive detention may use postal ballots.
- **Polling Process**
 - ◆ **Timetable:** ECI sets polling days.
 - ◆ **Polling Stations:** Located in public venues; max 1,500 voters per station.
 - ◆ **Voting Method:** Secret ballot via Electronic Voting Machines (EVMs).
 - ◆ **Counting of Votes:** Conducted by the Returning Officer and Observers; winner is the candidate with the most votes.

ELECTORAL PROCESS IN INDIA

- **Qualification for Contesting Polls**
 - ◆ **Citizenship:** Must be an Indian citizen.
 - ◆ **Age:** Minimum 25 for Lok Sabha/State Assembly; 30 for Rajya Sabha/State Council; 21 for panchayat and municipality elections.
 - ◆ **Additional Qualifications:** As per the Representation of People Act, 1951.
- **Schedule of Elections:** Lok Sabha and State Assembly elections every five years, unless dissolved earlier.
- **Election Announcement:** ECI announces election schedule weeks prior, activating the Model Code of Conduct.

REPRESENTATION OF THE PEOPLE ACT, 1950

The Representation of the People Act (RPA), 1950, governs the allocation of seats and delimitation of constituencies for elections to the House of the People and State Legislatures, establishing voter qualifications and electoral rolls.

Key Provisions

- **Seat Allocation and Delimitation:** Defines procedures for allocating seats in Parliament and State Legislatures based on census figures and empowers the President to amend delimitation orders after consulting the Election Commission of India (ECI).



- **Voter Qualifications:** Requires voters to be:
 - Permanent residents of India.
 - At least 18 years old.
 - Not disqualified by law for reasons such as non-residence, unsoundness of mind, or criminal activities.
- **Electoral Roll Preparation:** Outlines procedures for creating electoral rolls, appointing officers like the Chief Electoral Officer (CEO), District Election Officer (DEO), and Electoral Registration Officer (ERO), with the ERO responsible for electoral rolls in each constituency.
- **Reservation of Seats:** Mandates reservation for Scheduled Castes (SC) and Scheduled Tribes (ST) in the Lok Sabha and State Assemblies, allowing the ECI to determine reserved constituencies, especially in specific northeastern states
- **Electoral Registration Officers ERO's Role:** Prepares electoral rolls for constituencies.
- **Returning Officers RO's Role:** Conducts elections and supervises the counting process.
- **Voting Rights for NRIs:** Extended voting rights to Indian citizens living abroad in 2010.
- **Schedules of RPA, 1950**
 - **First Schedule:** Allocates seats in the House of the People.
 - **Second Schedule:** Lists total seats in Legislative Assemblies.
 - **Third Schedule:** Allocates seats in Legislative Councils.
 - **Fourth Schedule:** Defines local authorities for Legislative Council elections

REPRESENTATION OF THE PEOPLE ACT, 1951

The Representation of the People Act, 1951, was enacted to address provisions not covered by the Representation of the People Act, 1950, including the conduct of elections, membership qualifications and disqualifications, election offences, and dispute resolutions.

Key Provisions

- **Administrative Machinery:** Establishes the framework for conducting elections, including the roles and responsibilities of the Election Commission of India (ECI).
- **Election Offences:** Defines various corrupt practices and electoral offences to ensure fair elections.
- **Election Disputes:** Outlines procedures for resolving election-related disputes.
- **Bye-Elections:** Specifies rules for conducting bye-elections and timelines for filling vacancies.
- **Political Parties Registration:** Mandates the registration of political parties, classifying them as national, state, or unrecognised after elections.

Qualifications and Disqualifications

- **Qualifications:**
 - **Elector Status:** Must be an elector in the relevant constituency.
 - **Reserved Seats:** Scheduled Caste or Scheduled Tribe members must contest from reserved seats.
 - **Age:** Minimum age is 25 years for Lok Sabha and 21 years for panchayat and municipality elections.
- **Disqualifications Under the Representation of the People Act, 1951 [UPSC 2020]**
 - **Conviction for Certain Offences (Section 8):** Disqualified if sentenced to:
 - ◆ **2+ years** for specified offences.
 - ◆ **6+ months** for bribery, election-related offences, etc.
 - **Corrupt Practices (Section 8A):** Disqualified for **6 years** post-conviction.
 - **Dismissal from Government Service (Section 9):** Disqualified if dismissed for corruption or disloyalty.
 - **Government Contracts (Section 9A):** Disqualified if holding existing government contracts without severing ties.
 - **Managing Agent/Manager of Corporation (Section 10):** Disqualified if in a managerial position in government-affiliated companies.
 - **Failure to Lodge Election Expenses (Section 10A):** Disqualified for **3 years** for not submitting election expense accounts on time.
- **Powers of the ECI:** Inquiries into disqualifications of members.
- **Checks and Balances**
 - **Election Dispute Management:** Handles disputes and checks for corrupt practices.
 - **Civil Court Jurisdiction:** Bars the jurisdiction of civil courts over electoral matters.
- **Election Dispute Provisions**
 - **Trial of Election Petitions:** Establishes procedures for the trial of election petitions.
 - **Withdrawal and Abatement:** Outlines conditions for withdrawal and abatement of election petitions.
 - **Costs and Security:** Specifies costs associated with election petitions and security for costs.
 - **Appeals:** Provides for appeals to the Supreme Court regarding election matters.

DELIMITATION COMMISSION

Definition: Delimitation is the process of fixing the boundaries of electoral constituencies to reflect population changes. In India, it involves redrawing Lok Sabha and Legislative Assembly constituencies, affecting the allocation of seats. **Example:** Delhi has 7 Lok Sabha and 70 Legislative Assembly constituencies.

- **Constitutional Provisions**
 - **Article 82:** Parliament must enact a Delimitation Act after each Census, establishing a Delimitation Commission.
 - **Article 170:** States are similarly divided into constituencies after every Census.
- **Historical Background**
 - **In India, such Delimitation Commissions have been constituted four times.** [UPSC 2024]
 - **First Exercise:** Conducted in 1950-51; **Delimitation Commission Act** enacted in 1952.
 - **Subsequent exercises: 1963, 1973, 2002.**
 - **42nd Amendment Act (1976):** Frozen seat allocations until 2000.
 - **84th Amendment Act (2001):** Extended the freeze to 2026.
 - **87th Amendment Act (2003):** Provided delimitation based on the 2001 Census, not altering seat numbers.
 - Future delimitation will follow the next Census post-2026.
- **Composition and Appointment: Chairperson:** A retired Supreme Court judge, Chief Election Commissioner, and State Election Commissioners. Appointed by the President of India, established through a parliamentary act.
- **Functions:** Equalizes constituency populations. Identifies seats for Scheduled Castes (SCs) and Scheduled Tribes (STs).
- **Powers:** Orders are presented to Lok Sabha and state assemblies but are immutable. Majority opinion prevails in case of disputes. Orders have the force of law and are not subject to court challenge.
- **Process:** Every ten years, a Delimitation Act is enacted. The Commission reviews demographic data and current constituencies, consulting stakeholders. Feedback is incorporated, and the final report is published in official gazettes. The final order takes effect upon presidential communication, serving as the basis for upcoming elections.
- **Note:** Delimitation Commission, the orders of the Delimitation Commission cannot be challenged in a Court of Law. When the orders of the Delimitation Commission are laid before the Lok Sabha or State Legislative Assembly, they cannot effect any modifications in the orders. [UPSC 2012]

Delimitation Commission for Jammu & Kashmir

- **Historical Background**
 - **Previous Governance:** Lok Sabha seat delimitation followed the Indian Constitution; Assembly seat delimitation was governed by the Jammu and Kashmir Constitution.

- **Establishment of Commission:** In March 2020, a Delimitation Commission headed by **Justice Ranjana Prakash Desai**, under the **Delimitation Act, 2002** was formed to redraw boundaries for the Union Territory after the abrogation of Article 370 on 5th August 2019.
- **Key Recommendations**
 - **Assembly Seats:** Increased from 83 to 90 (6 additional for Jammu, 1 for Kashmir).
 - **Parliamentary Constituencies:** Five constituencies divided equally, each with 18 assembly segments.
 - **Reserved Seats:** Seven for Scheduled Castes (SCs), nine for Scheduled Tribes (STs), plus two for Kashmiri migrants and one for displaced persons from Pakistan-occupied Kashmir.
 - **Constituency Adjustments:** 28 new constituencies were created; 19 existing ones were deleted.
 - **Legal Validation:** The Supreme Court upheld the Commission's establishment as lawful.

OTHER LEGISLATIONS RELATED TO ELECTIONS

- **Presidential and Vice-Presidential Elections Act, 1952:** Governs elections for the President and Vice-President of India.
- **Parliament (Prevention of Disqualification) Act, 1959:** Exempts certain government offices from disqualification for Parliament membership.
- **Government of Union Territories Act, 1963:** Establishes Legislative Assemblies and Councils of Ministers for certain Union Territories.
- **Scheduled Castes and Scheduled Tribes Orders (Amendment) Act, 1976:** Manages caste and tribe listings for parliamentary representation.
- **Government of National Capital Territory of Delhi Act, 1991:** Supports legislative provisions for Delhi's Assembly and Council of Ministers.

RULES RELATED TO ELECTIONS

- **Registration of Electors Rules, 1960:** Prepares and publishes electoral rolls.
- **Conduct of Elections Rules, 1961:** Ensures free and fair elections.
- **Prohibition of Simultaneous Membership Rules, 1950:** Regulates membership in multiple legislative bodies.
- **Disqualification Rules for Lok Sabha and Rajya Sabha (1985):** Enforces defection provisions.
- **Presidential and Vice-Presidential Elections Rules, 1974:** Governs election procedures.
- **Asset Declaration Rules (2004):** Mandates asset disclosure for parliamentary members.

ANTI-DEFECTION LAW

The **Anti-Defection Law**, enacted through the **52nd Amendment** in **1985**, aims to prevent political defections and ensure party discipline within the Indian Parliament and state legislatures.

52nd Amendment Act (1985)

- **Articles Amended:** 101, 102, 190, 191.
 - **Article 101:** Vacation of seats (Parliament).
 - **Article 102:** Disqualifications for membership (Parliament).
 - **Article 190:** Vacation of seats (State Legislature).
 - **Article 191:** Disqualifications for membership (State Legislature).
- **Addition: Tenth Schedule** detailing grounds for disqualification due to defection. [UPSC 2014]

Provisions of the Anti-Defection Law

- **Disqualification Criteria:**
 - **Political Party Members:** Disqualified if they:
 - ◆ Voluntarily resign from the party.
 - ◆ Vote against party directives without prior permission, unless condoned within **15 days**.
 - **Independent Members:** Disqualified if they join a political party post-election.
 - **Nominated Members:** Disqualified if they join a political party after **six months** from their appointment. [UPSC 2022]
- **Exceptions:**
 - **Merger:** Disqualification does not apply if a member exits due to a merger agreed by **two-thirds** of the party.
 - **Presiding Officer:** Members may resign after being elected as the presiding officer.
- **Adjudication and Authority:** The presiding officer of the House (Chairperson in RS, Speaker in LS) decides disqualification cases with no stipulated time limit for decisions (UPSC 2022). **Supreme Court ruling (Kihoto Hollohan Case, 1993):** Speaker's decisions are subject to judicial review.
- **Rule-Making Power:** The presiding officer can create rules for the Tenth Schedule, subject to House approval within **30 days**. Complaints must be addressed, giving the accused member a chance to respond before a decision is made.

- **Role of the Whip:** Responsible for ensuring party attendance and monitoring member behaviour in the House. Members defying the whip face disciplinary actions under the anti-defection law.

91st Amendment Act (2003)

- **Article 75 (1A):** Central ministers, including the Prime Minister, must not exceed **15%** of Lok Sabha's total strength.
- **Article 75 (1B):** Members disqualified for defection cannot be appointed as ministers until re-elected.
- **Article 164 (1A):** State ministers, including the Chief Minister, must not exceed **15%** of the Legislative Assembly's total strength, with a minimum of **12 ministers** (in Delhi, **10%**).
- **Article 164 (1B):** State legislature members disqualified due to defection are ineligible for ministerial positions.
- **Article 361B:** Members disqualified for defection cannot hold any **remunerative political position**.
- **Tenth Schedule:** The exemption from disqualification due to a split by **1/3rd** of the legislature party members has been **deleted**.

Related Supreme Court Cases

- **Kihoto Hollohan vs. Zachillhu (1992):** Affirmed the judicial review of the Speaker's decisions.
- **Ravi S. Naik vs. Union of India (1994):** Clarified the meaning of "voluntarily giving up membership."
- **G. Viswanathan vs. Speaker, Tamil Nadu (1996):** Members expelled from parties retain status as unattached members.
- **Shrimant Balasaheb Patil vs. Karnataka (2019):** MLAs not bound by the whip during trust votes; recommended a tribunal for disqualification cases.
- **Keisham Meghachandra Singh vs. Speaker, Manipur (2020):** Suggested constitutional amendments for a more independent adjudication process.

Global Perspective

Anti-defection laws exist in several countries, including:

- **Bangladesh:** Article 70 mandates resignation for voting against party directives.
- **Kenya:** Section 40 requires resignation upon party departure.
- **Singapore:** Articles 46 and 48 outline disqualification conditions upon resignation or expulsion.
- **South Africa:** Section 47 stipulates loss of membership if a member leaves their nominating party.

Important Committees Related to Electoral Reforms

Year	Committee/Commission	Focus/Recommendations
1974	Tarkunde Committee	Curbing electoral malpractice
1975	J.P. Committee	Established by Jayaprakash Narayan to address electoral reforms
1983	Vohra Committee	Nexus between crime and politics; recommended disqualification of candidates with criminal backgrounds
1990	Dinesh Goswami Committee	Electoral reforms emphasising transparency in election funding
1993	Vohra Committee	Focused on the relationship between crime and politics; recommended measures to curb criminal influence in elections
1998	Indrajit Gupta Committee	Recommended partial state funding of elections to reduce money power influence
2000	National Commission to Review the Working of the Constitution	Headed by M.N. Venkatachaliah; addressed electoral reforms in constitutional review
2004	Jeevan Reddy Committee	Reviewed electoral laws and made recommendations for reforms
2005	Second Administrative Reforms Commission	Headed by Veerappa Moily; addressed issues related to electoral reforms and ethics in governance
2010	Tankha Committee	Election Laws and Reforms
2012	J.S. Verma Committee	Suggested amendments to criminal laws concerning electoral candidates
2023	Ramnath Kovind Committee	High-level Committee on Simultaneous Elections

Notable SC Judgments on Elections, ECI & Electoral Reforms

Candidate Eligibility:

- **ADR vs UOI (2002):** Disclosure of criminal records, assets, liabilities.
- **K. Prabhakaran vs P. Jayarajan (2005):** Disqualification for >2 years' conviction.
- **Lily Thomas vs UOI (2013):** Automatic disqualification on conviction under RPA Section 8(4).
- **Rajbala vs State of Haryana (2015):** Upheld educational criteria for local elections.

Election Commission Independence:

- **Mohinder Singh Gill vs CEC (1978):** ECI's **plenary powers** under Article 324.
- **T.N. Seshan vs UOI (1995):** Equal powers for CEC, ECs.
- **Anoop Baranwal vs UOI (2023):** Independent **Selection Committee** for CEC, ECs.

Electoral Processes:

- **PUCL vs UOI (2013):** Introduced **NOTA**.
- **Subramanian Swamy vs ECI (2013):** Made **VVPAT** mandatory.
- **Abhiram Singh vs C.D. Commachen (2017):** Banned campaigns based on **religion, race, caste, community and language**.

Electoral Reforms:

- **Jan Chaukidar vs UOI (2014):** Barred custodial **candidates**.
- **Ashok Chavan vs Madhavrao (2014):** Non-disclosure of **poll expenses** as corruption.

RPA & Campaigning:

- **Kuldip Nayar vs UOI (2006):** Allowed **open ballot** for Rajya Sabha.
- **Union of India vs Harbans Singh (2001):** ECI powers to cancel polls for **booth capturing**.

Model Code of Conduct (MCC):

- **Vikas Singh vs ECI (2004):** Enforced MCC guidelines.
- **Ministry of I&B vs ECI (2019):** Media adherence to MCC upheld.





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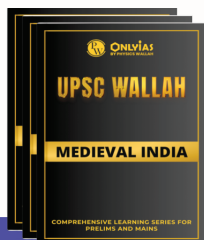
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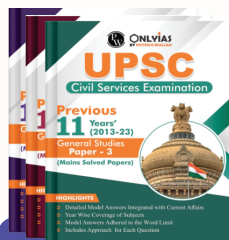
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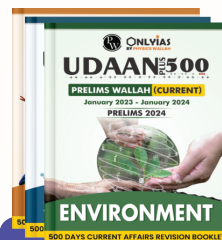
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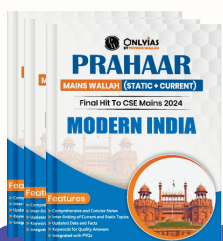
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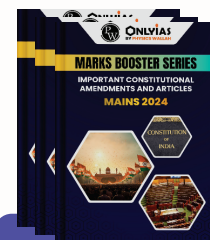
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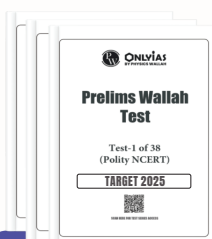
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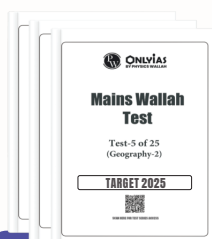
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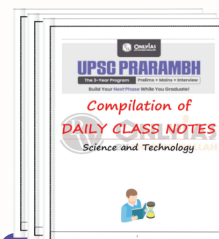
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